

Title: Inventions that are not patentable — Traditional Knowledge

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 3(p)

Plain English Summary: An invention cannot be patented if it is essentially traditional knowledge or merely combines or duplicates properties that are already traditionally known. For an Ayurvedic startup, simply taking a traditionally known Ayurvedic formulation or known properties of traditional ingredients is generally not enough to obtain a patent.

The Exact Legal Text: (p) an invention which, in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components.

Keywords/Triggers: traditional knowledge patent, Ayurvedic knowledge patent, patent rejection traditional knowledge, known Ayurvedic formulation, traditional medicine patent, Section 3(p), TK patentability, Ayurveda patent

Title: New form or new use of a known substance

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 3(d)

Plain English Summary: A new form of a known substance is not patentable unless it results in enhancement of the known efficacy. A new use or property of a known substance is also excluded in the circumstances stated in this section, which is important when an Ayurvedic company tries to patent a known medicinal substance in a slightly modified form.

The Exact Legal Text: (d) the mere discovery of a new form of a known substance which does not result in the enhancement of the known efficacy of that substance or the mere discovery of any new property or new use for a known substance or of the mere use of a known process, machine or apparatus unless such known process results in a new product or employs at least one new reactant.

Explanation.—For the purposes of this clause, salts, esters, ethers, polymorphs, metabolites, pure form, particle size, isomers, mixtures of isomers, complexes, combinations and other derivatives of known substance shall be considered to be the same substance, unless they differ significantly in properties with regard to efficacy.

Keywords/Triggers: Section 3(d), new form known substance, new use patent, known Ayurvedic medicine, efficacy requirement, patent rejection, pharmaceutical patent, modified formulation

Title: Definition of Invention

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 2(1)(j)

Plain English Summary: To qualify as an invention, something must be a new product or process, involve an inventive step, and be capable of industrial application. An Ayurvedic product or process therefore needs more than simply being a traditional formulation; it must satisfy the patentability requirements.

The Exact Legal Text: (j) “invention” means a new product or process involving an inventive step and capable of industrial application;

Keywords/Triggers: patentable invention, Ayurvedic invention, new product patent, new process patent, industrial application, invention definition, patent eligibility, Section 2(1)(j)

Title: Inventive Step

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 2(1)(ja)

Plain English Summary: An invention must contain a technical advance compared with existing knowledge or have economic significance, and it must not be obvious to a skilled person. For Ayurveda, merely changing ingredients or repeating known traditional preparation methods may not satisfy the inventive-step requirement.

The Exact Legal Text: (ja) “inventive step” means a feature of an invention that involves technical advance as compared to the existing knowledge or having economic significance or both and that makes the invention not obvious to a person skilled in the art;

Keywords/Triggers: inventive step Ayurveda, technical advance, obvious invention, patent novelty, Ayurvedic formulation patent, patent eligibility, Section 2(1)(ja), skilled person

Title: New Invention

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 2(1)(l)

Plain English Summary: An invention must not already have been anticipated by publication or use anywhere in the world before the patent filing date. It must not already be in the public domain or form part of the state of the art, which is especially important for documenting traditional Ayurvedic knowledge.

The Exact Legal Text: (l) “new invention” means any invention or technology which has not been anticipated by publication in any document or used in the country or elsewhere in the world before the date of filing of patent application with complete specification, i.e., the subject matter has not fallen in public domain or that it does not form part of the state of the art;

Keywords/Triggers: novelty Ayurveda, new invention, prior art, public domain Ayurveda, traditional knowledge prior art, patent novelty test, state of the art, patent rejection

Title: Biological Material and Source Disclosure

Jurisdiction: India

Category: Biodiversity

Source Citation: The Patents Act, 1970, Section 10(4)(ii)(D)

Plain English Summary: When biological material is used in an invention, the patent specification must disclose its source and geographical origin. For an Ayurvedic invention using plants, microorganisms, or other biological resources, this information is important for patent documentation and should also be considered alongside biodiversity and ABS requirements.

The Exact Legal Text: (D) disclose the source and geographical origin of the biological material in the specification, when used in an invention.

Keywords/Triggers: biological material patent, source disclosure, geographical origin, Ayurvedic plant patent, medicinal plant patent, biological resource, Section 10, patent ABS

Title: Biological Material Deposit under Budapest Treaty

Jurisdiction: India

Category: International

Source Citation: The Patents Act, 1970, Section 10(4)(ii)

Plain English Summary: If biological material mentioned in a patent specification cannot be adequately described and is not publicly available, the applicant may need to deposit it with an international depository authority under the Budapest Treaty and provide the required deposit information. This can matter for inventions involving microorganisms or biological materials used in Ayurvedic research.

The Exact Legal Text: (ii) if the applicant mentions a biological material in the specification which may not be described in such a way as to satisfy clauses (a) and (b), and if such material is not available to the public, the application shall be completed by depositing the material to an international depository authority under the Budapest Treaty and by fulfilling the following conditions, namely:—

(A) the deposit of the material shall be made not later than the date of filing the patent application in India and a reference thereof shall be made in the specification within the prescribed period];

(B) all the available characteristics of the material required for it to be correctly identified or indicated are included in the specification including the name, address of the depository institution and the date and number of the deposit of the material at the institution;

(C) access to the material is available in the depository institution only after the date of the application for patent in India or if priority is claimed after the date of the priority;

(D) disclose the source and geographical origin of the biological material in the specification, when used in an invention.

Keywords/Triggers: Budapest Treaty, biological deposit patent, microorganism patent, biological material deposit, Ayurvedic microorganism, international depository authority, patent specification, biological resource

Title: Foreign Patent Application Disclosure

Jurisdiction: India

Category: International

Source Citation: The Patents Act, 1970, Section 8(1)

Plain English Summary: If an applicant is also applying for the same or substantially the same invention in another country, information about those foreign applications must be provided to the Indian Patent Office as required by the section. This is important for an Ayurvedic company seeking patent protection in both India and foreign markets.

The Exact Legal Text: 8. Information and undertaking regarding foreign applications.—(1)

Where an applicant for a patent under this Act is prosecuting either alone or jointly with any other person an application for a patent in any country outside India in respect of the same or substantially the same invention, or where to his knowledge such an application is being prosecuted by some person through whom he claims or by some person deriving title from him, he shall file along with his application or subsequently within the prescribed period as the Controller may allow—

(a) a statement setting out detailed particulars of such application; and

(b) an undertaking that, up to the date of grant of patent in India, he would keep the Controller informed in writing, from time to time, of detailed particulars as required under clause (a) in

respect of every other application relating to the same or substantially the same invention, if any, filed in any country outside India subsequently to the filing of the statement referred to in the aforesaid clause within the prescribed time.

Keywords/Triggers: foreign patent application, international patent filing, Section 8, PCT India, foreign patent disclosure, same invention abroad, patent information, international Ayurveda patent

Title: Opposition — Biological Material Source and Geographical Origin

Jurisdiction: India

Category: Biodiversity

Source Citation: The Patents Act, 1970, Section 25(1)(j) and Section 25(2)(j)

Plain English Summary: A patent application or granted patent can face opposition where the specification does not disclose, or wrongly mentions, the source or geographical origin of biological material used in the invention. For Ayurveda-related inventions using biological resources, this is a critical trigger for checking source and origin information. The Exact Legal Text: (j) that the complete specification does not disclose or wrongly mentions the source and geographical origin of biological material used for the invention;

Keywords/Triggers: patent opposition biological material, source of biological material, geographical origin patent, Ayurvedic plant source, Section 25(j), patent opposition Ayurveda, biological resource disclosure, patent challenge

Title: Opposition — Traditional and Indigenous Knowledge

Jurisdiction: India

Category: Biodiversity

Source Citation: The Patents Act, 1970, Section 25(1)(k) and Section 25(2)(k)

Plain English Summary: A patent can be opposed when the claimed invention was already anticipated by knowledge, including oral knowledge, available within a local or indigenous community in India or elsewhere. This is highly relevant to Ayurvedic traditional knowledge because knowledge may exist in traditional or community sources even when it is not recorded in a modern patent database.

The Exact Legal Text: (k) that the invention so far as claimed in any claim of the complete specification was anticipated having regard to the knowledge, oral or otherwise, available within any local or indigenous community in India or elsewhere, but on no other ground.

Keywords/Triggers: traditional knowledge opposition, indigenous knowledge patent, oral traditional knowledge, Ayurveda prior art, community knowledge, patent challenge TK, Section 25(k), traditional medicine patent

Title: Working of Patented Inventions

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 83

Plain English Summary: Patents are intended to encourage inventions and ensure that inventions are worked in India on a commercial scale where reasonably practicable. The Act also considers public health, public interest, reasonable affordability and prevention of patent abuse.

The Exact Legal Text: 83. General principles applicable to working of patented inventions.—

Without prejudice to the other provisions contained in this Act, in exercising the powers conferred by this Chapter, regard shall be had to the following general considerations, namely:—

(a) that patents are granted to encourage inventions and to secure that the inventions are worked in India on a commercial scale and to the fullest extent that is reasonably practicable without undue delay;

(b) that they are not granted merely to enable patentees to enjoy a monopoly for the importation of the patented article;

(c) that the protection and enforcement of patent rights contribute to the promotion of technological innovation and to the transfer and dissemination of technology, to the mutual advantage of producers and users of technological knowledge and in a manner conducive to social and economic welfare, and to a balance of rights and obligations;

(d) that patents granted do not impede protection of public health and nutrition and should act as instrument to promote public interest specially in sectors of vital importance for socio-economic and technological development of India;

(e) that patents granted do not in any way prohibit Central Government in taking measures to protect public health;

(f) that the patent right is not abused by the patentee or person deriving title or interest on patent from the patentee, and the patentee or a person deriving title or interest on patent from the patentee does not resort to practices which unreasonably restrain trade or adversely affect the international transfer of technology; and

(g) that patents are granted to make the benefit of the patented invention available at reasonably affordable prices to the public.

Keywords/Triggers: working of patent, patent public interest, affordable price patent, public health patent, patent abuse, commercial working India, Section 83, patented Ayurvedic product

Title: Compulsory Licence

Jurisdiction: India

Category: Patents

Source Citation: The Patents Act, 1970, Section 84(1)

Plain English Summary: After three years from the grant of a patent, an interested person may apply for a compulsory licence if public requirements are not satisfied, the patented invention is not reasonably affordable, or the invention is not worked in India. This could become relevant to patented healthcare or Ayurvedic products where public-access considerations arise.

The Exact Legal Text: 84. Compulsory licences.—(1) At any time after the expiration of three years from the date of the grant of patent, any person interested may make an application to the Controller for grant of compulsory licence on patent on any of the following grounds, namely:—

(a) that the reasonable requirements of the public with respect to the patented invention have not been satisfied, or

(b) that the patented invention is not available to the public at a reasonably affordable price, or

(c) that the patented invention is not worked in the territory of India.

Keywords/Triggers: compulsory licence, Section 84, affordable patented medicine, public requirements, patent not worked India, healthcare patent, Ayurveda compulsory licence, patent licensing

Title: Compulsory Licence for Export of Pharmaceutical Products

Jurisdiction: India

Category: International

Source Citation: The Patents Act, 1970, Section 92A

Plain English Summary: India provides for compulsory licensing for manufacture and export of patented pharmaceutical products to countries that lack sufficient manufacturing capacity and need the products to address public-health problems, subject to the conditions in the section. This is relevant to international commercialization of qualifying patented pharmaceutical products.

The Exact Legal Text: 92A. Compulsory licence for export of patented pharmaceutical products in certain exceptional circumstances.—(1) Compulsory licence shall be available for manufacture and export of patented pharmaceutical products to any country having insufficient or no manufacturing capacity in the pharmaceutical sector for the concerned product to address public health problems, provided compulsory licence has been granted by such country or such country has, by notification or otherwise, allowed importation of the patented pharmaceutical products from India.

(2) The Controller shall, on receipt of an application in the prescribed manner, grant a compulsory licence solely for manufacture and export of the concerned pharmaceutical product to such country under such terms and conditions as may be specified and published by him.

(3) The provisions of sub-sections (1) and (2) shall be without prejudice to the extent to which pharmaceutical products produced under a compulsory licence can be exported under any other provision of this Act.

Explanation.—For the purposes of this section, “pharmaceutical products” means any patented product, or product manufactured through a patented process, of the pharmaceutical sector needed to address public health problems and shall be inclusive of ingredients necessary for their manufacture and diagnostic kits required for their use.

Keywords/Triggers: Section 92A, export patent, compulsory licence export, pharmaceutical product, international patent licensing, public health export, patented medicine export, India patent export